



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 15 1997

DOT-E 11819

EXPIRATION DATE: January 31, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Van Waters and Rogers, Inc.
Anchorage, Alaska
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment of hydrogen peroxide in UN1H1 plastic drums that exceed the quantity limitations for cargo aircraft. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 (9)(b).
5. BASIS: This emergency exemption is based on the application of Van Waters and Rogers, Inc., dated January 10, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hydrogen peroxide, aqueous solutions with not less than 20 percent but not more than 40 percent hydrogen peroxide (stabilized as necessary)	5.1	UN2014	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packagings are two 15-gallon capacity UN 1H1 plastic drums.
- b. The UN 1H1 plastic drums are authorized for a one-time shipment only.
- c. The drums shall be secured within the aircraft prior to being transported.

8. SPECIAL PROVISIONS:

- a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- b. This exemption may only be used for transportation by cargo aircraft from Anchorage, Alaska to Beluga Airstrip (a private airport) across Cook Inlet from Anchorage, Alaska, via Spennak Air Service (FAA Certificate ERGA-672D).

9. MODE OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard the cargo aircraft used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

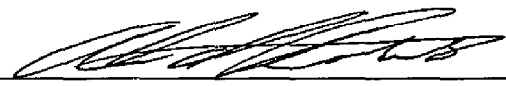
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for

Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

JAN 15 1997



Alan T. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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